

## Tentative Rulings for July 9, 2026 Department 4

**To request oral argument, you must notify Judicial Secretary  
Crystal Marias at (760) 904-5722  
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department 4 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252,  
1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 533 0910**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

**Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.**

1.

| CASE #      | CASE NAME                                                           | HEARING NAME                                                                                                                                                      |
|-------------|---------------------------------------------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| CVCO2601470 | INTERINSURANCE<br>EXCHANGE OF THE<br>AUTOMOBILE CLUB VS<br>PALACIOS | MOTION TO COMPEL<br>RESPONSES TO SPECIAL<br>INTERROGATORIES, AND<br>REQUEST FOR MONETARY<br>SANCTIONS AGAINST<br>RESPONDENTS MARIO<br>PALACIOS AND SONIA PALACIOS |
| CASE #      | CASE NAME                                                           | HEARING NAME                                                                                                                                                      |
| CVCO2601470 | INTERINSURANCE<br>EXCHANGE OF THE<br>AUTOMOBILE CLUB VS<br>PALACIOS | MOTION TO COMPEL:<br>ANSWER/RESPONSE TO<br>PRODUCTION OF DOCUMENTS                                                                                                |
| CASE #      | CASE NAME                                                           | HEARING NAME                                                                                                                                                      |
| CVCO2601470 | INTERINSURANCE<br>EXCHANGE OF THE<br>AUTOMOBILE CLUB VS<br>PALACIOS | MOTION TO COMPEL<br>RESPONSES TO FORM<br>INTERROGATORIES, AND<br>REQUEST FOR MONETARY<br>SANCTIONS AGAINST<br>RESPONDENTS MARIO<br>PALACIOS AND SONIA PALACIOS    |

**Tentative Ruling:**

GRANT the motions.

The court Orders verified responses, without objection, to all of Petitioner's discovery requests within 20 days of today's date.

Respondents are sanctioned in the sum of \$810 for all three combined discovery motions, payable to petitioner's counsel within 30 days.

2.

| CASE #      | CASE NAME                            | HEARING NAME               |
|-------------|--------------------------------------|----------------------------|
| CVRI2102535 | CITY OF LAKE<br>ELSINORE VS MITCHELL | MOTION FOR ABATEMENT ORDER |

**Tentative Ruling:**

Continue the Motion to July 21, 2026, at 8:30am, D-4.

3.

| CASE #      | CASE NAME              | HEARING NAME     |
|-------------|------------------------|------------------|
| CVRI2504813 | SMITH VS WALMART, INC. | MOTION TO COMPEL |

**Tentative Ruling:**

DENY

Walmart stated that, without waiving its objections, and after conducting a diligent search and reasonable inquiry, Walmart does not believe the requested documents exist. Thereafter, Walmart provided amended responses to RPD Nos. 1-3. Walmart's supplemental responses to RPD Nos. 1-3 clearly state that it is producing all it can and its responses are in substantial compliance with CCP § 2031.230. No further responses are required.

4.

| CASE #      | CASE NAME                    | HEARING NAME                      |
|-------------|------------------------------|-----------------------------------|
| CVRI2600354 | LLADO VS COUNTY OF RIVERSIDE | DEMURRER ON 1ST AMENDED COMPLAINT |

**Tentative Ruling:**

GRANT Defendant's Request for Judicial Notice.

OVERRULE the demurrer to causes of action 1,2,3,5,6 and 7. These causes of action have been sufficiently pled.

SUSTAIN the demurrer to the 4<sup>th</sup> cause of action (dangerous condition/affirmative danger creation), with 30 days leave to amend. The action fails because the County does not own or control the property where the incident occurred. Plaintiff alleges that this cause of action is really a claim for "affirmative danger creation" (negligent undertaking) under Govt. Code § 815.2, but the allegations do not allege that the undertaking was to render services for the plaintiff's protection. Rather, Defendants provided referral services to and for Mineses, a third party. It was not for Plaintiff. The undertaking must be to render services that the defendant should recognize as necessary for the plaintiff's protection. Defendant does not have a duty absent that allegation. To the extent that Plaintiff seeks to recover for "affirmative danger creation" under a general negligence theory, that claim is already encompassed within the first (negligence) and third (negligent referral) causes of action.